

IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK

04 CV 4371

JUDGE SCHEINDLIN

JOSPEH BLAKE,

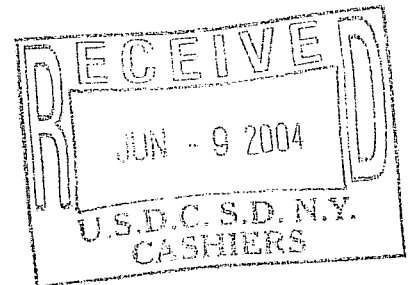
PLAINTIFF

VS

COMPLAINT/JURY TRIAL

THE CITY OF NEW YORK, a municipal
entity, NEW YORK CITY POLICE
OFFICER EARL LYNCH, Shield # 26881,
individually and in his official
capacity, NEW YORK CITY POLICE SERGEANT
LOUIS PINEIRO, Shield # 05314,
individually and in his official
capacity, NEW YORK CITY POLICE
OFFICER SCOTT McKENNA, individually
and in his official capacity, NEW YORK
CITY POLICE OFFICERS "JOHN DOES",
individually and in their official
capacities,

DEFENDANTS



I. INTRODUCTION

1. This is an action against the Defendant parties, individually and collectively, for the violation of the Plaintiff's federally guaranteed constitutional and civil rights and his rights as otherwise guaranteed under the laws and Constitution of the State of New York.

2. This case arises out of the arrest of the Plaintiff, Joseph Blake, on June 6, 2002 at or about 6:30 P. M. in the vicinity of 113th Street between Lexington Avenue and Third Avenue as the Plaintiff was on his way home.

3. The Plaintiff seeks monetary damages for his wrongful false arrest and for his wrongful detention and incarceration and for subjecting him to unnecessary and excessive force and for subjecting him to an unnecessary and excessive strip search with squat, for the otherwise intrusive invasion of the Plaintiff's body, and for the violation of the Plaintiff's federally guaranteed constitutional and civil rights; and the Plaintiff seeks whatever other relief is appropriate and necessary in order to serve the interests of justice and assure that his remedy is

II. JURISDICTION

4. Jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343 [3] and [4] in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

5. The Plaintiff also invokes the jurisdiction of this Court in conjunction with the Declaratory Judgment Act, 28 U.S.C. Sections 2201, et seq., this being an action in which the Plaintiff, while seeking monetary damages, also seeks declaratory and injunctive relief if such is deemed necessary and desirable and in the interest of justice in order to provide the Plaintiff with a full and complete remedy for the violation of his rights.

6. This is an action in which the Plaintiff seeks relief for

the violation of his rights as guaranteed under the laws and Constitution of the United States and the laws and Constitution of the State of New York.

III. PARTIES

7. The Plaintiff is an African American citizen who resides in the Taft Houses complex at 1385 5th Avenue, Apt. # 14A, New York, New York 10029. At the time of the incident which gives rise to this litigation, the Plaintiff resided at 165 East 112th Street, Apt. # 5B, New York, New York 10029.

10. Defendants Earl Lynch, Shield # 26881, and Sergeant Luis Pineiro, Shield # 05314, Scott McKenna, and "John Does" are New York City Police Officers. They are sued in their individual and official capacities. Notwithstanding the wrongful and illegal nature of their acts and conduct as hereinafter described, they were taken in and during the course of their duties and functions as employees and agents of the City of New York and incidental to the otherwise lawful performance of the same.

IV. ALLEGATIONS

11. The Plaintiff is Joseph Blake.

12. The Plaintiff is an African American citizen.

13. The Plaintiff presently resides at 1385 5th Avenue, Apt. # 14, New York, New York 10029 [212] 860-3007. That address is part and parcel of the Taft Houses housing complex. He has resided at that location since some time after the Plaintiff's arrest on June 6, 2002. The Plaintiff resides with a cousin. At the time of the incident, the Plaintiff resided at 165 East 112th Street, Apt. #

5B, New York, New York 10029. He resided thereat with the mother of the Plaintiff's two sons and his two sons.

14. The Plaintiff is forty seven [47] years of age.

15. The Plaintiff's birth date is February 11, 1957.

16. At present, the Plaintiff is employed at the Office of Consumer Affairs of the City of New York as a maintenance worker. In addition, the Plaintiff works, part time, as a monitor for the City of New York when the City administers tests.

17. The incident, which gives rise to this litigation, commenced on June 6, 2002 at or about 4:30 P.M. in the vicinity of 113th Street between Lexington Avenue and 3rd Avenue, New York City.

18. The Plaintiff was on his way to his residence in the Johnson Houses.

19. The Plaintiff had just visited his newly born baby in the Brookdale Hospital in Brooklyn, New York. The baby's mother, who resided on Hancock Avenue in Brooklyn, and the baby were doing well in the Brookdale Hospital. The baby had been born on June 5, 2002.

20. The Plaintiff exited the train at Lexington Avenue and 116th Street and walked to 113th Street when he turned east on 113th Street and Lexington Avenue and began walking toward Third Avenue in expectation that he would enter into the Johnson Houses housing complex grounds and go to the residence whose address is 165 East 112th Street, Apt. # 5B, New York, New York 10029.

21. The Plaintiff saw someone from the neighborhood, a person who he then knew as "John" and whose full name the Plaintiff came

to subsequently learn was John Hamilton, as he was walking on 113th Street east of Lexington Avenue toward 3rd Avenue.

22. As the Plaintiff said hello to John and was walking only a few steps with him as the Plaintiff was preparing to enter into the Johnson Houses development grounds in order to get to the 165 East 112th Street, Apt. # 5B residence which is part and parcel of the Johnson Houses development, plain New York City Police Officers came upon the scene and immediately arrested both the Plaintiff and John.

23. In being placed under arrest, the Plaintiff was propelled to the ground and handcuffed. In the course of the arrest and as a consequence of the excessive, unreasonable and unnecessary force which was applied by the New York City Police Officers in the course of the Plaintiff's arrest, the Plaintiff suffered a laceration to his face.

24. The Plaintiff did nothing to provoke his arrest or to provoke the utilization by the New York City Police Officers of the force associated with his placement under arrest.

25. The Plaintiff and John Hamilton were placed in the police van and moved about, in the van, for some period of time before he and John Hamilton were transported to the PSA # 5 Housing Division police facility on 123rd Street where he was processed. While being transported about in the van, another individual was placed in the van and, along with the Plaintiff and John Hamilton, eventually transported to the PSA# 5 police facility.

26. At the PSA # 5 facility, the Plaintiff was subjected to a

strip search where he was required to remove all of his clothes and otherwise to squat down.

27. No drugs were recovered from the Plaintiff pursuant to the search or otherwise. Furthermore, no other contraband or weapons were recovered from the Plaintiff.

28. The Plaintiff was transported to Metropolitan Hospital by the New York City Police Officers under the false pretext that the Plaintiff had swallowed drugs.

29. The Plaintiff was held at the Metropolitan Hospital, in police custody, for many hours where he was made to drink quantities of water in order to, ostensibly, flush out any drugs that the Plaintiff had, allegedly, swallowed.

30. The Plaintiff had not swallowed any drugs.

31. The Plaintiff did not, at the time of his arrest, possess any drugs for him to swallow. No drugs were flushed out of the Plaintiff since the Plaintiff had swallowed no drugs.

32. The Plaintiff did not otherwise engage in any drug transaction at or about the time he was arrested.

33. When he was arrested as previously described and set forth, the Plaintiff suffered a laceration to his face which laceration was administered to when the Plaintiff was transported to the Metropolitan Hospital facility where, as previously set forth, he was subjected to an invasive procedure that required the Plaintiff to consume large quantities of water for the purposes, ostensibly, of flushing drugs from his body [of which there were none to flush from his body].

34. The Plaintiff was released from the Metropolitan Hospital in police custody and returned to the PSA # 5 Housing police facility and from which he was then transported to Manhattan Central Booking.

35. Eventually, the Plaintiff was arraigned where a bail was set.

36. The Plaintiff was released, on bail, during the evening hours of June 7, 2002.

37. The Plaintiff was required to appear in Court on several occasions. Eventually, on or about December 18, 2002, the charges, which had been preferred against the Plaintiff as a consequence of his June 6, 2002 arrest, were dismissed.

38. The Plaintiff was arrested without probable cause and the charges and prosecution of the Plaintiff were preferred and pursued without probable cause.

39. No reasonable police officer could have reasonably and objectively believed that there was probable cause for the arrest of the Plaintiff and the preferral of charges against the Plaintiff and the prosecution of the Plaintiff.

40. The Plaintiff was subjected to malicious prosecution.

41. the Plaintiff was, as well, subjected to unreasonable, unnecessary and excessive force.

42. The Plaintiff did not engage in any kind of conduct which provoked the utilization of any force to him, as applied, in the course of his arrest.

43. There was no reasonable basis for subjecting the Plaintiff

to a strip search and squat associated therewith. Such was unnecessary, excessive, and unreasonable and an unjustified invasion of the Plaintiff's privacy and an unreasonable condition of the Plaintiff's seizure.

44. There was no reasonable basis for subjecting the Plaintiff to a "flushing" process and procedure at the Metropolitan Hospital and such was unnecessary and excessive and an unjustified invasion of the Plaintiff's privacy and, otherwise, an unjustified and unreasonable condition of the Plaintiff's seizure.

45. The actions and conduct of the law enforcement agents herein were propelled by the drug and gun crime enforcement initiatives of the City of New York which drug and gun crime enforcement initiatives have caused New York City law enforcement agents to push the envelope and to cross constitutional boundaries in order to generate arrest statistics and prosecutions for drug and gun crime offenses [where there is no probable cause for the arrest] thereby making it appear to the public that the efforts are worth the investments including the cost of the arresting, detention, and incarceration of innocent individuals.

46. The drug and gun crime enforcement initiatives are predicated on an "ends justifies the means" philosophy.

47. The law enforcement agents who arrested Ezekiel Campbell and who otherwise took actions against him as herein described are agents and employees of the City of New York. Although their actions and conduct herein described were unlawful and unconstitutional and otherwise wrongful, those actions and conduct

were taken by the law enforcement agents in the performance of their duties and functions as New York City Police Officers and as employees and agents of the City of New York and incidental to their otherwise lawful performance of their duties and functions. it is believed that the law enforcement officers included New York City Police Officers Earl Lynch, Scott McKenna, and Sergeant Luis Pineiro.

48. Plaintiff Joseph Blake suffered injuries and damages as a consequence of his arrest, detention, all associated therewith [including photographing, fingerprinting, strip search and all associated therewith, incarceration, and physical pain associated with the utilization of excessive force and including the "flush" process and procedure].

49. Plaintiff Joseph Blake suffered mental anguish, emotional distress, and psychological trauma, fear, physical pain, and humiliation and loss of liberty.

50. The value of the damages and injuries suffered by the Plaintiff has not yet been specifically quantified but the value is substantial in nature.

51. The actions, conduct, policies, and practices and customs herein described violated Joseph Blake's rights under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights At of 1871, 42 U.S.C. Section 1983.

52. The Plaintiff has no other adequate remedy at law but for the institution of this litigation.

FIRST CAUSE OF ACTION

53. The Plaintiff reiterates Paragraph # 's 1 through 52 and incorporates such by reference herein.

54. The Plaintiff was falsely arrested and falsely imprisoned in violation of the Plaintiff's rights under the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and Fourth Amendment to the United States Constitution.

55. The Plaintiff suffered injuries and damages.

SECOND CAUSE OF ACTION

56. The Plaintiff reiterates Paragraph #'s 1 through 55 and incorporates such by reference herein.

57. The Plaintiff was subjected to unnecessary, excessive, and unreasonable physical force in violation and of the Plaintiff's right under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

58. The Plaintiff suffered injuries and damage.

THIRD CAUSE OF ACTION

59. The Plaintiff reiterates Paragraph #'s 1 through 58 and incorporates such by reference herein.

60. The Plaintiff was subjected to unnecessary and unreasonable and excessive detention in violation of his rights under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

61. The Plaintiff suffered injuries and damages.

FOURTH CAUSE OF ACTION

62. The Plaintiff reiterates Paragraph #'s 1 through 61 and incorporates such by reference herein.

63. The Plaintiff was subjected to an unnecessary and unreasonable and excessive strip search [with squat] in violation of his rights as guaranteed under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

64. The Plaintiff suffered injuries and damages.

FIFTH CAUSE OF ACTION

65. The Plaintiff reiterates Paragraph # 's 1 through 64 and incorporates such by reference herein.

66. The Plaintiff was subjected to an unnecessary and unreasonable and excessive "flush" search process and procedure in violation of his rights under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

67. The Plaintiff suffered injuries and damages.

SIXTH CAUSE OF ACTION

68. The Plaintiff reiterates Paragraph # 's 1 through 67 and incorporates such by reference herein.

69. The policies and practices which propelled the actions and conduct of the Officers herein violated the Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

70. The Plaintiff suffered injuries and damages.

WHEREFORE and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction herein and thereafter:

- [a] Assume pendent party and pendent claim jurisdiction.
- [b] Enter appropriate declaratory and injunctive relief.
- [c] Award appropriate compensatory and punitive damages in an amount to be defined and determined.
- [d] Award reasonable costs and attorney's fees.
- [e] Award such other and further relief as the Court deems appropriate and just.
- [f] Convene and empanel a jury.

DATED: New York, New York
June 4, 2004

Respectfully submitted,



JAMES I. MEYERSON [JM 4304]
396 Broadway-Suite # 601
New York, New York 10013
[212] 226-3310
ATTORNEY FOR PLAINTIFF
BY: _____